

Control Number: [REDACTED]
Microwave Line of Sight (MLoS) Field Service Representative (FSR) Service

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Justification Review Document
for Other than Full and Open Competition - FAR Part 6

Program/Equipment: Microwave Line of Sight (MLoS) Field Service Representative (FSR) Service Bridge Contract.

Authority: 10 USC 3204(a)(2) as implemented in Federal Acquisition Regulation 6.302-1(a)(1) "Only one responsible source and no other supplies or services will satisfy agency requirements".

Amount: \$ [REDACTED]

Prepared by: Individual preparing the Justification and Approval Document

Typed Name: [REDACTED]
Title: [REDACTED]
E-mail: [REDACTED]

TEAMS: [REDACTED]
Date: 13 January 2025

Contracting Officer:
Typed Name: [REDACTED]
E-Mail: [REDACTED]

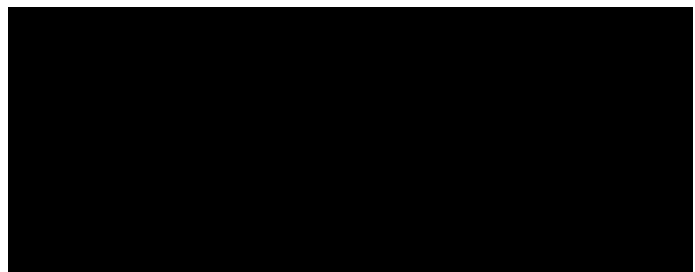
TEAMS: [REDACTED]
Date: 13 January 2025

Technical Representative:
Typed Name: [REDACTED]
Title: [REDACTED]
E-mail: [REDACTED]

Phone: [REDACTED]
Date: 13 January 2025

Requirements Representative:
Typed Name: [REDACTED]
Title: [REDACTED]
Email: [REDACTED]

Phone: [REDACTED]
Date: 13 January 2025



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Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Technical Representative:

Typed Name: [REDACTED]

Phone: [REDACTED]

E-Mail: [REDACTED]

Signature: [REDACTED] Date: 13 JAN 2025

Legal Counsel:

Typed Name: [REDACTED]

Phone: [REDACTED]

E-Mail: [REDACTED]

Signature: [REDACTED] Date: 14 JAN 2025

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Justification and Approval
for Other than Full and Open Competition – FAR Part 6

1. Contracting Activity: U.S. Army Contracting Command, Aberdeen Proving Ground (ACC-APG), Huachuca Division, 2133 Cushing Street, Building 61801, Room 3410, (MB52) Fort Huachuca, AZ 85613-7070.

2. Description of Action: ACC-APG proposes to issue to [REDACTED] a sole source bridge contract to extend Administration, IT Engineering and Logistical Support (AITELE) services for the United States Central Command (USCENTCOM) under [REDACTED] which expires on 31 March 2025. The proposed value of this bridge contract is [REDACTED], which is intended to be a commercial, Firm Fixed Price Contract and will be funded using FY25 Operations and Maintenance Army (OMA) funds.

3. Description of Supplies/Services: Field Service Representative (FSR) services (Operation and Maintenance) for the Microwave Line of Site Assets in [REDACTED], [REDACTED] areas of responsibility. The total estimated value of this contract is [REDACTED] ([REDACTED] for 6-Month Base, and [REDACTED] for the 3-Month Option). This proposed extension of services is for a period not to exceed 9 months, consisting of one (1) six-month base period and one (1) three-month option period necessary to continue performance at the [REDACTED] where Posts/Camps/Stations require critical communication capabilities via Microwave Line of Site (MLoS) assets. This sole source bridge contract is to extend services under [REDACTED] will provide continued services while the competitive solicitation for a replacement contract is conducted. This extension of services will be funded using FY25 Operations and Maintenance Army (OMA) funds, as estimated below.

The Independent Government Estimate (IGE) provided for this action on 7 October 2024 is based on historical information on the current task order monthly invoicing costs, [REDACTED]. The IGE was created by [REDACTED]. The anticipated costs and periods of performance are:

Extension Period	Period of Performance	Monthly Value	Total Value
6 Month Base	01 April 25 – 30 Sept. 25	[REDACTED]	[REDACTED]
3 Month Option	01 Oct. 25 – 31 Dec. 25	[REDACTED]	[REDACTED]

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This contract provides support to [REDACTED] administrative people in CONUS to maintain primary and secondary MLoS communications links that enable critical high-speed, low-latency voice, data, and video services to strategic and tactical locations in the Combined Joint Operations Area (CJOA) where terrestrial fiber is not available. MLoS provides a high bandwidth, low latency, survivable, reliable, hand carried, and rapidly deployable network infrastructure solution for supporting both strategic and tactical environments. This solution meets the constantly changing austere battlefield environment as it can be expeditiously implemented to provide immediate voice and data services to seamlessly integrate into or provide network redundancy when permanent or strategic infrastructure fails. Continued FSR support is needed for this critical capability. This request is for FSRs to install, troubleshoot, repair, conduct network optimization, and provide engineering support for MLoS equipment being utilized in [REDACTED] and other locations in support of the [REDACTED] mission.

4. Authority Cited: 10 USC 3204(a)(2), as implemented in Federal Acquisition Regulation 6.302-1(a)(1) "Only one responsible source and no other supplies or services will satisfy agency requirements".

5. Reason for Authority Cited: This sole-source award is a bridge contract to continue the delivery of mission critical goods or services for 6 months, and 3-month option, and is necessary to afford the agency the requisite time necessary to award a new competitive follow-on contract. Currently the Mission Partner operates in a contingency environment with frequent personnel turnover which has caused delays in the recomplete package being completed. At this time, it is unclear when the new contract will be awarded due to the fact that this requirement will not be re-competed through the Army Contracting Command Aberdeen Proving Ground Huachuca Division contracting office. The timeline for award of the new contract will be determined by the contracting office who the recomplete effort is assigned to.

The MLoS systems play a critical role in providing access to Intelligence, Surveillance, and Reconnaissance (ISR) assets, data, voice, video, and various other information or intelligence data. This access is essential for the Warfighter, both in the United States and among North Atlantic Treaty Organization (NATO) and Coalition forces operating in theatre. Without this service, there will be an extreme degradation of the mission command capability within the CJOA, specifically degradation of 508 communication nodes that allow high bandwidth network connections to critical locations. Multiple sites across the CJOA will lose primary and/or secondary means of communication.

This MLoS FSR task order supports engineering, installation, and maintenance associated with CJTF-OIR MLoS assets. FSR support is instrumental and heavily

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(Source Selection Information - See FAR 2.101 and 3.104-4)

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utilized to maintain the currently deployed infrastructure and meet newly emerging requirements in both point-to-point and point-to-multipoint configurations.

If this contract is not awarded, there will be an extreme degradation of the mission command capability within the CJOA, specifically degradation of 508 communication nodes that allow high bandwidth network connections to critical locations. Multiple sites across the CJOA will lose primary and/or secondary means of communication. Such losses will jeopardize operations, endanger personnel, and compromise mission objectives. Effective communication is vital to mission effectiveness. For the reasons above, this mission is critical to the U.S. Army and cannot withstand a gap in service. An extension to the existing contract is needed to be put in place before 31 March 2025.

The time constraints between the completion of the current task order end date of 31 March 2025 and the anticipated award of the follow-on re-compete task order does not allow sufficient time for a successful evaluation, award, and transition of a new contractor. The previous Task Order, [REDACTED] took approximately 8 months to award. Attempting to compete the requirements of this proposed modification would introduce unacceptable and catastrophic performance risk resulting in a lapse in service. This is a highly sensitive and critical program operating under very constrained, critical timelines associated with the follow-on re-compete.

As detailed below, the circumstances for requesting other than full and open competition are due to the unique and extensive qualifications required by the Field Service Technicians, the history of previous solicitations, and the inability to exercise a contract extension.

Based on the requirements of the contract, the current contractor, [REDACTED], is uniquely qualified to perform the work required. The company has the necessary certifications and experience in climbing and working on towers in austere environments. In addition, the company has a proven track record of providing effective intelligence and information tools to the US Army.

Therefore, based on the purpose, objectives, contractor requirements, and unique qualifications of [REDACTED], it is in the best interest of the US Army to award this contract for other than full and open competition. This will ensure the military superiority and information dominance needed in today's battlefield.

6. Efforts to Obtain Competition: Orders placed under FAR 16.5 are exempt from posting under FAR 5.202, FAR 16.505(b)(2) posting justification. All follow-on services will be competed under Fair Opportunity. The current requirement was competed Fair Opportunity [REDACTED]. In accordance with FAR Part 10 and DFARS 210.001a sources sought

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(Source Selection Information - See FAR 2.101 and 3.104-4)

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notice for W91RUS25RMLOS was post on SAM.gov. The notice was posted on 31 October 2024 and closed on 12 November 2024. There were four inquiries that showed interest in this requirement.

a. Effective competition. Effective competition is not applicable for this extension of services, for reasons described in Section 5, above.

b. Subcontracting competition. The prime contractor will continue to utilize Automation Innovations as its subcontractor.

7. Actions to Increase Competition: Potential competition does not exist for this bridge extension due to severely limited time constraints and the complexity and volume of service to a worldwide customer base. There is not enough time to issue a solicitation, conduct evaluations with multiple Offerors, and award a task order to maintain continuous service and no other company is available to meet the Government's needs for these services without incurring harming the Government's mission due and a lapse of essential services, as described in Section 5, above. The assigned contracting office for the recompete effort will determine the competitive process to insure competition to the maximum extent possible.

Currently competition is not a viable option for the agency's need for the accelerated and abbreviated time frame. Due to the critical requirements needed for MLoS services, a lapse in services must be avoided. The approved justification will be made publicly available in accordance with FAR 6.305(b).

8. Market Research: In accordance with FAR Part 10 and DFARS 210.001a sources sought notice for W91RUS25RMLOS was post on SAM.gov. The notice was posted on 31 October 2024 and closed on 12 November 2024. There were [REDACTED] inquiries that showed interest. Two of the companies listed are currently doing the work as the prime contractor [REDACTED] and sub-contractor [REDACTED]. While all [REDACTED] contractors may be able to perform the work for this requirement the timeline associated with issuing a solicitation, conducting evaluations with multiple Offerors, and awarding a task order would result in a lapse of essential services incurring harm to the Government's mission.

9. Interested Sources: To date, four companies have written to express interest, as detailed in Section 8, above. Those companies are as follows:

[REDACTED]

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(Source Selection Information - See FAR 2.101 and 3.104-4)

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10. Other Facts:

a. Procurement history.

1. Contract [REDACTED], utilizing full and open competition, was awarded to Telos on 26 August 2020 with a base year and 4 option periods.

b. Other Facts. N/A

11. Technical Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED] [REDACTED]
[REDACTED]

Signature: [REDACTED]

12. Requirements Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED] [REDACTED]
[REDACTED]

Signature: [REDACTED]

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable based upon price analysis including comparison of proposed prices with historical prices, the IGE, and pricing under current contracts for similar services. In accordance with FAR 15.403-4, certified cost or pricing data will be required.

[REDACTED] [REDACTED]
[REDACTED]

Signature: [REDACTED]

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14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]
[REDACTED]

Date:

Signature:

[REDACTED]

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Approval

Based on the foregoing justification, I hereby approve the procurement of Microwave Line of Sight (MLoS) Field Service Representative (FSR) Service in the estimated amount of \$ [REDACTED]. This action is made on another than full and open competition basis pursuant to the authority of 10 USC 3204(a)(2) as implemented in Federal Acquisition Regulation 6.302-1(a)(1) "Only one responsible source and no other supplies or services will satisfy agency requirements", subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]